

25NNCV04364 25NNCV04364

County: los-angeles

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Case Number: 25NNCV04364 Hearing Date: September 4, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION FOR ATTORNEY'S FEES

Hearing Date: 9/4/26

CASE NO.: 25NNCV04364

CASE NAME: Golden Bank, N.A. v.

Charioton International, LLC, et al.

Moving Party: Plaintiff Golden Bank, N.A.

Responding Party: Unopposed

Notice: Sufficient

Ruling: GRANT

NOTICE

The

Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties

must appear on all other matters scheduled for this case.

BACKGROUND

This is a breach of contract case. On June 23, 2025, plaintiff Golden Bank, N.A. (Plaintiff) filed a Complaint against defendants Chariot International, LLC, Feifei Lu, and Yanpeng Zhang (collectively, Defendants) for defaulting on a loan agreement. On February 9, 2026, default judgment was entered in favor of Plaintiff and against all Defendants.

On March 2, 2026, Plaintiff filed the instant motion seeking payment of attorney's fees and costs pursuant to the loan agreement and as a matter of law. No opposition has been filed as of August 31, 2026.

LEGAL

STANDARD

A prevailing party is entitled to recover costs, including attorneys' fees, as a matter of right. (Code Civ. Proc., §§ 1032(a)(4), 1032(b), 1033.5.)

The fee setting inquiry in California ordinarily begins with the "lodestar" method, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. A computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award. The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 49.) Such an approach anchors the trial court's analysis to an objective determination of the value of the attorney's services, ensuring that the amount awarded is not arbitrary. (*Id.* at 48, n.23.) After the trial court has performed the lodestar calculations, it shall consider whether the total award calculated under all of the circumstances of the case is more than a reasonable amount and, if so, shall reduce the section 1717 award so that it is a reasonable figure. (PLCM Group v. Drexler (2000) 22

Cal.4th 1084, 1095-96.)

The factors considered in determining the modification of the lodestar include the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case. (EnPalm, LLC v. Teitler Family Trust (2008) 162 Cal. App. 4th 770, 774 (emphasis in original).) A negative modifier was appropriate when duplicative work had been performed. (Thayer v. Wells Fargo Bank, N.A. (2001) 92 Cal.App.4th 819.)

“The reasonable hourly rate is that prevailing in the community for similar work.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.)

“The experienced trial judge is the best judge of the value of professional services rendered in [her] court.” (Ibid.) “A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the ‘careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.’” (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) “The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work.” (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

DISCUSSION

Plaintiff seeks

to recover attorney fees and reimbursement costs from Defendants pursuant to the loan agreement and as a matter of law, as Plaintiff has won its claims. (Mot., p. 1.) Plaintiff seeks a total amount of \$16,905.96 consisting of (1) \$13,140.96 in attorney's fees pursuant to local rule 3.214, and (2) additional attorney's fees at a lodestar figure of \$3,765 for bringing the instant motion. (Ibid.) Plaintiff does not seek a multiplier or costs.

Prevailing Party

Plaintiff argues

they are entitled to attorney's fees because they have been deemed the

prevailing party and judgment was entered in Plaintiff's favor. (Mot., p. 3.) Plaintiff argues that the terms of the loan agreement at issue provides that the Lender (Plaintiff) be awarded attorney's fees in connection with the collection of the loan. (Mot., p. 2.)

The Court finds that

Plaintiff is entitled to recover attorney's fees and costs from Defendants pursuant to Civil Code section 1717 and the default judgment. (Civ. Code, § 1717(a) ["In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract...shall be entitled to reasonable attorney's fees in addition to other costs"].) The loan agreement at issue does provide for collection of attorney's fees and costs in connection with enforcement, i.e. collection, of the loan. (Comp., Exh. 1, ¶4.12.)

Accordingly,

Plaintiff is the prevailing party and entitled to recovery of attorney's fees.

Local Rule, 3.214

Plaintiff argues that they are entitled to fees in the amount of \$13,140.96. (Mot., p. 4.) Plaintiff reasons that that because they have been awarded default judgment and damages of \$1,125,095.89, they are entitled to an award of \$2,890 plus 1% of the excess over \$100,000 pursuant to Los Angeles Local Rules, Rule 3.214. (Ibid.)

Pursuant

to Rule 3.214(a) table for contract disputes ending in default, a prevailing party awarded judgment over \$100,000 is entitled to \$2,890 plus 1% of the excess over \$100,000. (Local Rules, Rule 3.214(a).)

Here,

1% of the excess judgment over \$100,000 is \$10,250.96. Thus, pursuant to Local Rules, Plaintiff is entitled to \$13,140.96 (\$10,250.96 + \$2,890).

Lodestar

In addition to

local rule fees, Plaintiff seeks attorney's fees for the instant motion at a

lodestar figure of \$3,765.

Hourly Rates

Plaintiff seeks

an hourly rate for the following individuals at: (1) \$750/hour for attorney Yong; (2) \$195/hour for unnamed paralegal. (Yong Decl., ¶ 9.) Plaintiff's primary support for Counsel's billing rate is their experience in the field. (Yong Decl., ¶¶ 10-12.)

The Court has

considered the declarations. (Kaufman Decl., ¶¶ 4, 6-9, 13; Hunt Decl., ¶¶ 7-9.)

Based on the Court's experience and in light of the straightforward nature of the motion, the Court finds it appropriate to reduce the requested fees as follows: 1) \$500/hour for attorney Yong; (2) \$195/hour for unnamed paralegal.

Hours Expended

Plaintiff seeks

a lodestar figure of \$3,765.00 ((2.5 hours x \$750 rate = \$1,875 for attorney Yong) + (2.0 hours x \$195 rate = \$390 for paralegal)) for a total of 4.5 hours of work. (Yong Decl., ¶ 13.)

Plaintiff does

not provide billing records and does not provide a great deal of argument surrounding the requested fees. Due to the straightforward nature of Plaintiff's motion and the absence of an opposition, the Court will reduce requested fees to \$570.00 ((0.5 hour x \$750 attorney rate) + (1 hour x 195 paralegal rate)).

Accordingly, the

Court finds a lodestar figure of \$570 reasonable.

Summary

Therefore, Plaintiff

is awarded attorney's fees in the amount of \$13,140.96 pursuant to local rules and \$570 for the instant motion for a total sum of \$13,710.96. Accordingly, Plaintiff's Motion for Attorney's Fees and Costs is GRANTED.

CONCLUSION

AND ORDER

Plaintiff Golden

Bank, N.A.'s motion for attorney's fees is GRANTED

MOVING PARTY shall provide notice of

this ruling and submit a proposed order consistent with this ruling within 15
days from this date.